

Suman Gupta v. Madhyanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 25 May 2018 · WRIT - C No. 17939 of 2018 · **Writ dismissed; relegated to clause 6.5.**

HEADNOTE

A writ challenging disputed electricity dues is not maintainable. Where the consumer puts arrears at Rs 22,971 and the licensee at Rs 65,531, the quantum contest requires evidence and must be taken to paragraph 6.5 of the Electricity Supply Code, 2005 rather than extraordinary jurisdiction.

FACTUAL SUMMARY

Suman Gupta petitioned the Allahabad High Court against electricity dues demanded by Madhyanchal Vidyut Vitran Nigam Ltd. She claimed arrears of only Rs 22,971, while counsel for the licensee, on instructions, put the amount payable at Rs 65,531. An earlier listing had recorded dues of about Rs 65,000 and contemplated restoration of her connection if that sum were deposited, listing the matter for an out-of-court settlement. The Division Bench treated the quantum contest as requiring evidence.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-writ-barred-clause-6.5

HOLDING

A dispute as to the amount of electricity dues or the bill is a fact-intensive matter requiring evidence and cannot be tried in extraordinary writ jurisdiction. Recourse lies under paragraph 6.5 of the Electricity Supply Code, 2005. The petition is dismissed on that alternative remedy. ¶ 3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging disputed electricity dues is not maintainable.

Where the consumer puts arrears at Rs 22,971 and the licensee at Rs 65,531, the quantum contest requires evidence and must be taken to paragraph 6.5 of the Electricity Supply Code, 2005 rather than extraordinary jurisdiction. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF ELECTRICITY DUES PAYABLE

Consumer asserted Rs 22,971; licensee asserted Rs 65,531. The Court left the contest to clause 6.5. ¶ 3